

HOUSE No. 1375

The Commonwealth of Massachusetts

PRESENTED BY:

Bradley H. Jones, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act prohibiting surprise outside billing.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>1/15/2025</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>1/21/2025</i>
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>1/31/2025</i>
<i>Todd M. Smola</i>	<i>1st Hampden</i>	<i>3/10/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>1/28/2025</i>
<i>Kelly W. Pease</i>	<i>4th Hampden</i>	<i>3/24/2025</i>

HOUSE No. 1375

By Representative Jones of North Reading, a petition (accompanied by bill, House, No. 1375) of Bradley H. Jones, Jr., and others for legislation to establish a special commission (including members of the General Court) to consider and evaluate the efficacy of policies that require hospitals and other health care providers to sell bundled packages of services that include fees for all relevant physicians. Health Care Financing.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1207 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act prohibiting surprise outside billing.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding any general or special law to the contrary, there shall be a
2 commission to study and provide recommendations to address and prevent surprise outside
3 billing.

4 SECTION 2. The commission shall consist of the house and senate chairs of the joint
5 committee on health care financing, who shall serve as the co-chairs; one member to be
6 appointed by the speaker of the house of representatives; one member to be appointed by the
7 president of the senate; one member to be appointed by the house minority leader; one member
8 to be appointed by the senate minority leader; the director of the health policy commission or a

designee; the commissioner of the department of public health or a designee; and the executive director of the center for health information and analysis or a designee.

SECTION 3. The commission shall consider and evaluate the efficacy of policies that require hospitals and other health care providers to sell bundled packages of services that include fees for all relevant physicians, including but not limited to anesthesiologists, pathologists, and radiologists, with the intention of limiting and preventing surprise outside billing. The commission shall take into consideration similar laws put in place by other states. The commission shall develop recommendations including but not limited to prohibiting surprise outside billing, requiring insurance carriers to hold members harmless, and applying regulations across all providers, including health maintenance organizations and preferred provider organizations.

SECTION 4. The commission shall submit its report and findings, along with any recommendations and drafted legislation, to the house and senate committees on ways and means, the joint committee on health care financing, and the clerks of the house of representatives and senate within 12 months of the passage of this act.